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# California lawmaker recalled, stops Democratic supermajority

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LOS ANGELES (AP) — The Orange County-area state senator who voted to raise gas taxes is out of a job after Tuesday's primary election, denying Senate Democrats a supermajority for the rest of the year.

Democratic state Sen. Josh Newman will be replaced by former Republican Assemblywoman Ling Ling Chang after he was recalled for voting to raise gas taxes last year.

Primary voters also sorted through several legislative races colored by sexual harassment allegations. The election decided which candidates will square off in November for all 80 state Assembly seats and half of the 40 Senate seats. The top two vote-getters in primary races, no matter their political party affiliation, head to the November general election.

With millions of votes still to be counted, many of the races may not be decided for days.

RECALL ELECTION

Nearly two-thirds of voters recalled Newman, of Fullerton, over his vote last year to increase fuel and vehicle taxes to raise about $5 billion a year for road repairs.

Replacing him with Chang keeps Senate Democrats below a two-thirds supermajority needed to pass tax and fee increases.

Newman narrowly won the traditionally Republican Orange County-based district in the 2016 election, and both parties saw him as vulnerable.

A Republican-backed effort to repeal the tax increase is likely to be on the November ballot, and the Newman recall election is an early test of where voters stand.

Carl DeMaio, chairman of Reform California and a sponsor of the recall said in a statement that the vote shows that politicians who supported the gas tax "will pay the price at the ballot box."

Newman spokesman Derek Humphrey said in a statement that "the early numbers are not what we were hoping for," but did not concede the loss in what he termed "an undemocratic special interest power grab."

Even a late endorsement by former presidential candidate and independent Vermont Sen. Bernie Sanders wasn't helping Newman. Sanders recorded a 30-second Facebook ad urging voters to back Newman while praising his support for single-payer health care, education, the environment and immigrant rights.

The Newman recall campaign is the first in California since a failed effort against a Republican state senator in 2008 and the first on the state level anywhere in the nation since 2013, Joshua Spivak, author of the Recall Elections Blog, said in an email.

SEXUAL MISCONDUCT

Tony Mendoza resigned his Senate seat in February rather than face a rare expulsion vote, one of three state lawmakers who resigned this session over sexual misconduct allegations.

Voters were leaning against re-nominating the Democrat from Artesia for his old seat despite his denial that he engaged in unwanted flirtatious or suggestive behavior with six women.

Republican leaders backed two-time Assembly candidate Rita Topalian, while Democratic leaders favored Montebello Mayor Vanessa Delgado. Voters were choosing from crowded but slightly different fields while selecting the top two candidates for an Aug. 7 special runoff election to fill the vacancy, and for the November general election.

Meanwhile, two sitting legislators sought re-election despite sexual misconduct allegations.

Assembly investigators did not substantiate a claim that Democratic Assemblywoman Cristina Garcia of Bell Gardens groped a staff member who worked for another lawmaker in 2014. But investigators said she frequently used vulgar language, which Assembly Speaker Anthony Rendon said constituted sexual harassment.

She was in line to be one of the top two candidates heading to the November election.

Unions and a charter school group mounted an aggressive campaign to unseat her, which her campaign called payback for her supporting traditional public schools and clean air legislation.

Central Valley Republican Assemblyman Devon Mathis of Visalia faced a likely same-party challenge from Visalia Mayor Warren Gubler after the Tulare County Republican Central Committee sought his resignation over alleged inappropriate behavior including sexual misconduct. He denied the allegation and Sacramento police found no evidence to support a criminal charge, but his former chief of staff sued Mathis and the Assembly while repeating the claim in April.

SPECIAL ELECTIONS

Voters were supporting two Democrats in Los Angeles County seats vacated when Assemblymen Matt Dababneh and Raul Bocanegra resigned following sexual misconduct allegations. The winners of Tuesday's contests will join the Assembly immediately to serve out of the rest of the terms through November.

Voters were favoring Democrat Luz Rivas over Republican Ricardo Benitez to replace Bocanegra, and Democrat Jesse Gabriel over Republican Justin Clark to replace Dababneh.

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